

17 July 2026

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Committee on Safeguards

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**NOTIFICATION UNDER ARTICLE 12.1(A) OF THE AGREEMENT ON
SAFEGUARDS ON INITIATION OF AN INVESTIGATION AND
THE REASONS FOR IT**

UNITED STATES

Lamb Meat

The following communication, dated and received on 17 July 2026, is being circulated at the request of the delegation of the United States.

Pursuant to Article 12.1(a) of the WTO Agreement on Safeguards (Safeguards Agreement), the United States notifies that a safeguard investigation has been initiated as follows:

1. Specify the date when the investigation was initiated

The U.S. International Trade Commission (Commission) initiated the investigation on 13 July 2026.

A copy of the notice of institution of the investigation, which includes the scheduling of public hearings and the applicable rules of procedure, is attached.¹

The Commission has determined that this investigation is "extraordinarily complicated" within the meaning of 19 U.S.C. § 2252(b)(2)(B)) and will make its serious injury determination by 13 November 2026. If the Commission's determination is affirmative, or the Commission is equally divided, the Commission will submit its report to the President within 180 days of the date on which the petition was properly filed, 9 January 2027.

2. Specify the product subject to the investigation

The product covered by this investigation is fresh, chilled, or frozen lamb meat. Excluded from the scope are imports of live lambs and sheep and meat of mature sheep (mutton). Imports of lamb meat may enter under the following subheadings of the Harmonized Tariff Schedule of the United States (HTSUS): 0204.10.00, 0204.21.00, 0204.22.20, 0204.22.40, 0204.23.20, 0204.23.40, 0204.30.00, 0204.41.00, 0204.42.20, 0204.42.40, 0204.43.20, and 0204.43.40. While these HTSUS subheadings are provided for convenience and U.S. Customs purposes, the written description of the scope above is dispositive.

¹ A copy of the notice of institution of the investigation has also been submitted electronically and is available to government representatives. To consult it, please contact Ms Anne Richards of the Rules Division (anne.richards@wto.org)

3. Provide the reasons for the initiation of the investigation

- (i) Was the investigation initiated pursuant to a petition from the domestic industry?

No, the investigation is being initiated, pursuant to 19 U.S.C. § 2252, in response to a request filed on 13 July 2026, by the United States Trade Representative.

- (ii) Evidence on the basis of which the investigation was initiated.

Increased Import Quantities

The request from the United States Trade Representative alleges that U.S. import statistics indicate that lamb meat imports, which are sourced in major quantities from multiple countries, have increased in recent years.

Serious Injury or Threat of Serious Injury to the Domestic Industry

The request further alleges that available information suggests that these imports resulted in domestic industry lost sales, revenue, and market share as imported lamb meat significantly undersold the domestic like product. Moreover, recent information suggests that firms have exited the domestic industry entirely, and there have been domestic industry job losses, decreased capacity utilization rates, and struggles to maintain profitability.

Unforeseen Developments

The request does not make reference to unforeseen developments; however, the request states that the United States Trade Representative may request at a later date that the Commission identify any unforeseen developments and the effect of the obligations incurred under the WTO Agreement that led to such product being imported into the United States in such increased quantities as to be a substantial cause of serious injury, or the threat thereof, to the domestic industry.

The information contained in the request can be found at <https://edis.usitc.gov>.

- (iii) Evidence, if any, of critical circumstances where delay would could damage which it would be difficult to repair.

The request did not allege critical circumstances.

4. Provide a point of contact for the investigation and identify the preferred means for corresponding.

The point of contact for the investigation is:

Camille Bryan
Office of Investigations
U.S. International Trade Commission
500 E Street, SW
Washington, DC 20436
Tel: (202-205-2811)

The public record for this investigation may be viewed on the Commission's electronic docket (EDIS) at <https://edis.usitc.gov>.

5. Provide the deadlines and procedures for importers, exporters and other interested parties to present evidence and their views, including (i) deadlines and procedures for Members and exporters to identify themselves as interested parties, if so required, to participate in the investigation, and (ii) the date of an intended public hearing as provided for in Article 3.1.

Persons wishing to participate in the investigation as parties must file an entry of appearance with the Secretary to the Commission not later than 21 days after publication of the notice of institution in the Federal Register. The Secretary will prepare a service list containing the names and addresses of all persons, or their representatives, who are parties to this investigation upon the expiration of the period for filing entries of appearance.

The Secretary will make confidential business information gathered in this investigation available to authorized applicants representing interested parties under the administrative protective order issued in the investigation, provided that the application is made not later than 21 days after the publication of the notice of institution in the Federal Register. A separate service list will be maintained by the Secretary for those parties authorized to receive confidential business information under the administrative protective order.

Each party who is an interested party may submit a prehearing brief to the Commission. The deadline for filing prehearing briefs on serious injury is 8 October 2026; that for filing prehearing briefs on remedy is 23 November 2026.

The Commission has scheduled separate hearings in connection with the serious injury and remedy phases of this investigation. The hearing on serious injury will be held on 16 October 2026, at the U.S. International Trade Commission Building, 500 E Street, SW, Washington, DC.

In the event that the Commission makes an affirmative serious injury determination or is equally divided on the question of serious injury in this investigation, a hearing on the question of remedy will be held on 1 December 2026.

Requests to appear at the hearings should be filed in writing with the Secretary to the Commission on or before 8 October 2026 for the serious injury hearing, and 23 November 2026 for the remedy hearing.

All parties and nonparties desiring to appear at the hearings and make oral presentations should participate in prehearing conferences to be held on 15 October 2026 for the serious injury hearing and 30 November 2026 for the remedy hearing, if deemed necessary.

Parties may file written testimony in connection with their presentation at the hearing. A nonparty who has testimony that may aid the Commission's deliberations may request permission to present a short statement at the hearings. Parties must submit any request to present a portion of their hearing testimony in camera no later than 7 business days prior to the date of the respective hearings.

The deadline for filing posthearing briefs for the serious injury phase of the investigation is 23 October 2026; the deadline for filing posthearing briefs for the remedy phase of the investigation, if any, is 8 December 2026.

In addition, any person who has not entered an appearance as a party to the investigation may submit a written statement of information pertinent to the consideration of serious injury on or before 23 October 2026, and pertinent to the consideration of remedy on or before 8 December 2026.

The attached notice of institution provides further information regarding deadlines and procedures applicable to this investigation.

The Commission's Handbook on E-Filing, available on the Commission's website at https://www.usitc.gov/secretary/documents/handbook_on_filing_procedures.pdf, elaborates upon the Commission's rules with respect to electronic filing.
